

Chapter 12

PARKS AND RECREATION*

Article I. In General

Secs. 12-1—12-25. Reserved.

Article II. Parks

Division 1. Generally

Sec. 12-26. Definitions.
Sec. 12-27. Purpose.
Sec. 12-28. Jurisdiction and administration.
Sec. 12-29. Parental responsibility.
Sec. 12-30. Compliance with order of park policing agency.
Sec. 12-31. Enforcement.
Sec. 12-32. Damage to property.
Secs. 12-33—12-45. Reserved.

Division 2. Permits

Sec. 12-46. Required.
Sec. 12-47. Issuance; limitations.
Sec. 12-48. Minimum age; signature required.
Sec. 12-49. Fee.
Sec. 12-50. Park lodges and pavilions.
Sec. 12-51. Camping.
Sec. 12-52. Acts prohibited without written permit.
Secs. 12-53—12-65. Reserved.

***Editor's note**—E. Charles Godwin Community Center was accepted as a gift at the annual town meeting of March 10, 1942, article 53 of the warrant and ratified by the state legislature in New Hampshire Laws of 1943, Ch. 254 as amended.

Cross references—Planning board, § 2-116 et seq.; city manager responsible for all streets, sidewalks, utilities, public parks and playgrounds and all other municipally-owned buildings and structures, § 2-158; city manager responsible for issuance of permits and licenses for parades, games, carnivals, street advertising and lecturing or any other activity of a public nature, § 2-161; department of planning and development, § 2-261 et seq.; retail business activities, plays, games, sports and exhibits not otherwise prohibited by law may be conducted on a Sunday or any holiday, § 8-2.

CLAREMONT CODE

Division 3. Regulations

- Sec. 12-66. Hours of closing.
- Sec. 12-67. Disorderly conduct.
- Sec. 12-68. Games regulated.
- Sec. 12-69. Hunting, fishing and molesting wildlife.
- Sec. 12-70. Preservation of property and natural features.
- Sec. 12-71. Littering, rubbish, garbage, sewage and noxious material.
- Sec. 12-72. Alcoholic beverages.
- Sec. 12-73. Dogs, cats and other household pets.
- Sec. 12-74. Horseback riding.
- Sec. 12-75. Swimming, swimming areas and beaches.
- Sec. 12-76. Indecent conduct and exposure.
- Sec. 12-77. Operation of vehicles generally.
- Sec. 12-78. Vehicles for hire restricted.
- Sec. 12-79. Certain vehicles prohibited.
- Sec. 12-80. Obedience to laws generally.
- Sec. 12-81. Speed limit.
- Sec. 12-82. Traffic signs and markings.
- Sec. 12-83. Parking restrictions.
- Sec. 12-84. Reckless operation of vehicles.
- Sec. 12-85. Drag racing.
- Sec. 12-86. Operation of vehicles while under the influence.
- Sec. 12-87. Operation of unsafe vehicles.
- Sec. 12-88. Use of spotlights, headlights.
- Sec. 12-89. Bicycles, snow vehicles and motorbikes.
- Sec. 12-90. Track and field use and regulations.

Division 4. Tobacco Products and Equipment

- Sec. 12-91. Findings and purpose.
- Sec. 12-92. Use of tobacco products and equipment prohibited.
- Sec. 12-93. Definitions.
- Sec. 12-94. Distribution and sales prohibited.
- Sec. 12-95. Signs required.
- Sec. 12-96. Penalties.
- Secs. 12-97—12-100. Reserved.

ARTICLE I. IN GENERAL

Secs. 12-1—12-25. Reserved.

ARTICLE II. PARKS**DIVISION 1. GENERALLY**

Sec. 12-26. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alcoholic beverages shall mean all liquids which are intended for human consumption, or are actually consumed by humans, which contain more than three and two-tenths (3.2) percent of alcohol by volume.

Director shall mean the director of the department of recreation, parks and playgrounds of the city or his duly authorized agents.

Parks shall mean the areas listed on Attachment A to this article which is on file in the office of the city manager and shall include all buildings, structures and property located in such areas which are owned and maintained by the city for the use of the public.

Swimming area shall mean pools or beaches within a park and pools not within a park when being operated or used for the public by the department of recreation of the city.

Vehicle shall mean every device in, upon or by which a person or property is or may be transported.

(Ord. No. 171, § 5, 9-14-77; Ord. No. 272, § 2, 12-10-86)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 12-27. Purpose.

The purpose of this article shall be to preserve the public peace and good order on lands operated as public parks by the city, and to contribute to the safety and enjoyment of the users of

such park land by regulating the hours of use, the use of motorized vehicles and by prohibiting certain activities inimical to customary park recreation use.
(Ord. No. 171, § 2, 9-14-77)

Sec. 12-28. Jurisdiction and administration.

The department of recreation, parks and playgrounds is charged with the administration of this article and the posting of signs designating park lands within the city. The rules and regulations set forth herein shall apply to and be in effect in all parks under the control, supervision and jurisdiction of the department.
(Ord. No. 171, § 3, 9-14-77)

Sec. 12-29. Parental responsibility.

No parent, guardian or custodian of any minor shall permit or allow him to do any act which would constitute a violation of this article. Nonobservance of this section shall be a violation.
(Ord. No. 171, § 12, 9-14-77)

Sec. 12-30. Compliance with order of park policing agency.

(a) No person shall fail or refuse to comply with any reasonable order relating to the regulation, direction or control of traffic or to any other order lawfully given by any police officer or city official in the execution of their office; or willfully resist, obstruct or abuse any police officer or city official in the execution of their office or duties. Nonobservance of this section shall be a violation.

(b) No official or employee of the city shall, while acting pursuant to the provisions of this article, be personally liable for any damage that may accrue to persons or property as the result of any act required or permitted in the discharge of his official duties, providing that such acts are performed in good faith and without gross negligence.

(Ord. No. 171, § 13, 9-14-77)

Sec. 12-31. Enforcement.

(a) This article shall be enforced by the director and by the city police department and any other police agency having jurisdiction within the city.

(b) Any police officer may issue an appearance ticket pursuant to RSA 644:2, disorderly conduct, RSA 634:2, criminal mischief, and/or RSA 635:2, criminal trespass, to any person when he/she has reasonable cause to believe that such person has committed a violation of this article. Such appearance ticket shall direct the designated person to appear in the court of the city at a designated future time not later than thirty (30) days from the date of the issuance of the appearance ticket in connection with the alleged violation. Any police officer may, without a warrant, arrest any person in violation of any park rules or regulations as set forth in this article or as posted within such park, and take such person so arrested forthwith before a magistrate having competent jurisdiction, and he/she shall have at all times the right to enter the premises of any building, structure or enclosure, or any park including such grounds, buildings or structures which may be leased or set

aside for private or exclusive use of any individual or group of individuals, for the purpose of arresting violators hereof, and may use all necessary means to attain that end.
(Ord. No. 171, § 14, 9-14-77; Ord. No. 475, § 1, 6-14-06)

Sec. 12-32. Damage to property.

No person shall have the right to alter or destroy park property. Any person damaging any park property shall be liable for any damages incurred.
(Ord. No. 171, § 15(B), 9-14-77)

Secs. 12-33—12-45. Reserved.

DIVISION 2. PERMITS

Sec. 12-46. Required.

A permit shall be obtained from the director for the following uses and activities:

- (1) The use of park lodges or pavilions.
- (2) Picnicking on park grounds or the use of any playing fields or other park facilities by groups larger than twenty-four (24) persons.
- (3) Camping within a park where allowed.
- (4) Vending or serving of food and drink; provided no alcoholic beverage shall be sold or served in any park. Notwithstanding the above, beer and wine, may be sold or served by the drink at appropriate programs or events as permitted by the director at/or within a 200-foot radius of the lodge building located at the Arrowhead Recreational Area, subject to a license issued by the licensing board, pursuant to section 8-1(c) of this Code, and compliance with applicable New Hampshire law and regulation.

(5) Those acts prohibited without a written permit as set forth in section 12-52.
(Ord. No. 171, § 6(A), 9-14-77; Ord. No. 533, § 1, 7-10-2013; Ord. No. 590, § 1, 8-11-2021)

Sec. 12-47. Issuance; limitations.

All permits issued shall be in writing by the director and shall be subject to park rules and regulations. A permit to do any act shall authorize the same only insofar as it may be performed in

strict accordance with the written terms and conditions thereof and not in violation of any law, ordinance, rule or regulation governing parks. Any violation of any term or condition thereof, or any law, ordinance, rule or regulation governing parks, shall constitute grounds for revocation of such permit by the director, whose action therein shall be final. No permit for the same purpose shall be issued to the person whose permit has been revoked during the year in which such revocation is made.
(Ord. No. 171, § 6(D), 9-14-77)

Sec. 12-48. Minimum age; signature required.

All permit applicants shall be nineteen (19) years of age or older. All permits must be signed prior to use of a park facility or prior to the activities for which a permit is obtained. The signer of a permit shall be responsible for all damages to park facilities or contents thereof and shall agree to indemnify the city for such damages.
(Ord. No. 171, § 6(C), 9-14-77)

Sec. 12-49. Fee.

Upon obtaining a permit under this division, the applicant shall pay a permit fee to the city in an amount established by the city council. Such fee may vary according to the activity permitted and the facilities used.
(Ord. No. 171, § 6(E), 9-14-77)

Sec. 12-50. Park lodges and pavilions.

(a) Park lodges and pavilions may only be used upon the obtaining of a permit as provided herein.

(b) Rules and regulations particular to each park's lodge or pavilion shall be established by the director and posted within such facility. Nonobservance of such rules and regulations shall constitute a violation.

(c) Park lodges or pavilions may be made available for overnight use upon written permission of the director.

(d) All permits for park lodges and pavilions must be picked up at the recreation department at least seventy-two (72) hours prior to use.

(e) Use of units not already reserved may be arranged for with the director or his authorized representative on a first come, first served basis, upon payment of a permit fee and issuance of use-slip within the park area.
(Ord. No. 171, § 7, 9-14-77)

Sec. 12-51. Camping.

(a) Camping within parks is permitted only within designated areas and upon the obtaining of a permit.

(b) When camping sites are made available within a park, rules and regulations particular to each site shall be established by the director. Nonobservance of such camping rules and regulations shall constitute a violation.
(Ord. No. 171, § 8, 9-14-77)

Sec. 12-52. Acts prohibited without written permit.

(a) No person shall commit any of the following acts within parks without a written permit from the director:

- (1) Post or display any sign, banner, advertisement of any kind within any park.
- (2) Use any loudspeaker or other sound amplifying equipment.
- (3) Picnic or cook in any area not designated by the director for that purpose or make or kindle any fire, except in places provided therefor and then subject to such regulations as may be prescribed.
- (4) Write, paint or carve on any tree, bench or park structure; sleep, camp, lodge or reside in any park building, except in such places as designated for such purposes by the director.
- (5) Ascend or land with any aircraft, except in an emergency situation, including gliders and hang gliders or para-

chutes, or engage in stunt flying or parachute landing or model airplane flying or model rocker launching using liquid or solid fuel as a propellant.

- (6) Construct, repair or relocate utility fixtures, such as sewers, hydrants, posts, lines and conduits, or open trenches or make excavations, or engage in any construction in or on park lands.
- (7) Carry any flower or shrub, slingshot, axe, saw, shovel or spade within the parks, violate the regulations of the director relating to any building or place; damage any notice posted by order of the director, cut parkway curbs for private drives; locate, grade or construct paths, driveways and roadways across or along any parkway or park road; deposit materials in or upon any park or park road.
- (8) Move or carry any tables or equipment found within a park for park use to a different area of the park.
- (9) Beg, hawk or peddle, or solicit within any park.
- (10) Use public park and recreation facilities for private profit without the written permission of the director (i.e. charging for tennis lessons, etc.).
- (11) No person shall play or bet at or against any game which is played, conducted, dealt or carried on with cards, dice or other device for money, chips, credit or any other representative of value; nor shall any person be allowed to maintain or exhibit any gaming table or other instrument of gambling or gaming.

(b) Nonobservance of any part of this section shall constitute a violation.

(Ord. No. 171, § 9, 9-14-77)

Secs. 12-53—12-65. Reserved.

DIVISION 3. REGULATIONS

Sec. 12-66. Hours of closing.

No person shall be permitted to remain, stop or park within the confines of any park between the hours of 9:30 p.m. and 6:00 a.m.

in the city, except in emergency cases or with a special permit from the director. In case of an emergency or when, in the judgment of the director, the public interest demands it, any portion of a park may be closed to the public or to designated persons until permission is given to reopen. Nonobservance of this section shall constitute a violation.

(Ord. No. 171, § 5, 9-14-77)

Sec. 12-67. Disorderly conduct.

(a) No person shall disturb the peace and good order in any park by fighting, quarreling or wrangling with loud voice or shouts, threatening by violence to the person or property of others, or engaging in riotous clamor or tumult.

(b) No person shall congregate with others in a public place and refuse to comply with a lawful order of the police or the director to disperse or leave the park.

(c) No person, except peace officers or other law enforcement officers, shall have or carry any pistol, switchblade, hunting knife, slingshot, dagger, metal knuckles or other dangerous weapons concealed on or about his person while in the park.

(d) No person shall use obscene, profane or abusive language while in the park.

(e) No person shall loiter in or near toilet buildings or parking areas.

(Ord. No. 171, § 10(A), 9-14-77)

Sec. 12-68. Games regulated.

No person shall engage in potentially dangerous games involving thrown or propelled objects, such as footballs, baseballs, horseshoes, roller skates, golf balls or similar objects, except in areas designated for such usage, and then only subject to such rules as may be prescribed by the director. All games of any description must be conducted in a safe and orderly manner, and no rough or boisterous practices will be allowed. No one shall play games for which a permit or fee is required without first obtaining such permit and paying such fee unless waived by director.

(Ord. No. 171, § 10(B), 9-14-77)

Sec. 12-69. Hunting, fishing and molesting wildlife.

No person shall take or attempt to take any fish from or send or throw any animal or thing into a pond or any of the waters of the parks, except with permission of the director, and excepting that fishing may be permitted in season in certain park waters designated by the director. No person shall kill, injure or unnecessarily disturb any fish, waterfowl, birds or animals. No person within the confines of a park shall hunt, pursue with dogs, trap or in any other way molest any wild bird or animal found within the confines of a park, or rob or molest any bird nest or take the eggs of any bird.

(Ord. No. 171, § 10(C), 9-14-77)

Cross reference—Animals, Ch. 4.

Sec. 12-70. Preservation of property and natural features.

No person shall have the right to alter or destroy any part of a park nor any building, sign, equipment or other property found therein; nor shall any tree, flower, shrub, rock or other mineral be removed, injured or destroyed.

(Ord. No. 171, § 10(D), 9-14-77)

Sec. 12-71. Littering, rubbish, garbage, sewage and noxious material.

(a) No person shall, without the specific written consent of the director, bring into, leave behind or dump any material of any kind in the park, except the refuse, ashes, garbage and other material of a picnic, camp or other permitted activity, and such material shall be deposited in receptacles or pits provided for such purposes. Refuse is not to be dropped, thrown or scattered on park property. Tin cans, bottles or other glassware or metallic substances containing sharp edges shall be deposited in park receptacles.

(b) No person shall, either within or outside of a park, discharge into, throw, cast, lay, drop or leave in any river, brook, stream, storm sewer or drain flowing into or through a park, any substance, matter or thing, either liquid or solid, which may or

shall result in the pollution of such river, brook or stream within a park, or interfere with the conservation of the natural resources of a park, or endanger the health of visitors in a park.

(Ord. No. 171, § 10(E), 9-14-77)

Cross references—Nuisances, Ch. 11; solid waste, Ch. 14; utilities, Ch. 20.

Sec. 12-72. Alcoholic beverages.

No person shall consume or possess any alcoholic beverage in any park, unless expressly permitted under section 12-46(4), and no person shall come into any park or remain in any park when intoxicated.

(Ord. No. 171, § 10(F), 9-14-77; Ord. No. 272, § 2, 12-10-86; Ord. No. 533, § 2, 7-10-2013)

Cross reference—Consumption of alcoholic beverages restricted in certain areas, § 8-1.

Sec. 12-73. Dogs, cats and other household pets.

No person shall bring into, permit, have or keep in the park any dog, cat, household pet or other animal destructive to birds and other wildlife, except that dogs or cats are permitted if held in control by a leash or under command by the owner.

(Ord. No. 171, § 10(G), 9-14-77)

Cross references—Animals, Ch. 4; dogs, § 4-26 et seq.

Sec. 12-74. Horseback riding.

Horseback riding is permitted only on designated roadways or bridle paths and only on condition that they are ridden with care and under such control that they can be easily or quickly turned or stopped. No person shall ride horseback in any park after dark or before daybreak. No person shall smoke while mounted on horseback on bridle paths within a park.

(Ord. No. 171, § 10(H), 9-14-77)

Sec. 12-75. Swimming, swimming areas and beaches.

(a) No person shall bathe, wade or swim within any park or swimming area, except at such pools or beaches therein as may be designated for that purpose by the director, and without having the body concealed by suitable covering.

(b) Persons shall be permitted to change clothing on park property only in facilities set aside for that purpose.

(c) No person shall carry onto, possess, scatter or throw on any bathing beach or swimming area bottles or containers of any kind or broken glass.

(d) The use of life rafts, innertubes and other objects intended to support persons is prohibited in any of the designated swimming areas, except as otherwise permitted by the director.

(e) Boats, surfboards, water skis and similar aquatic equipment is prohibited within the designated swimming areas.

(f) No diapered infants shall be permitted to wade or bathe in park water or swimming areas.

(g) Cats and dogs are prohibited in all swimming areas and beaches.

(Ord. No. 171, § 10(I), 9-14-77)

Sec. 12-76. Indecent conduct and exposure.

No person shall appear in a park in a state of nudity or commit, perform or engage in any lewd, lascivious, obscene or indecent act or behavior, and no person shall make any indecent exposure of his or her person.

(Ord. No. 171, § 10(K), 9-14-77)

Sec. 12-77. Operation of vehicles generally.

(a) No person shall drive any automobile, motorcycle, motorized bike or other vehicle of traffic or burden upon any part of the parks or parkways, except on the proper drives and parking areas, or permit the same to stand upon the drives or any part thereof so as to congest traffic or obstruct the drive. Paths established as bridle paths, foot paths or bicycle paths shall not be used for vehicular traffic.

(b) It shall be unlawful for the operator of any vehicle to drive over any unmaintained portions of city-owned highways or drives or upon any city-owned recreational or conservational property.

(c) For the purposes of this section, the term "vehicle" shall include, but not be limited to, OHRV's, motorcycles, trucks and cars.

(d) Violators of the provisions of this section shall be subject to a fine of up to one thousand dollars (\$1,000.00) per violation as

allowed under RSA 47:17, and may be held liable for damages to the highway, drive or property as provided under RSA 236:38 and RSA 236:39.

(Ord. No. 171, § 11(A), 9-14-77; Ord. No. 348, 4-14-93)

Cross reference—Traffic and motor vehicles, Ch. 19.

Sec. 12-78. Vehicles for hire restricted.

No person shall cause any taxi, bus, limousine or other vehicle for hire to park upon any part of the parks or parkways for the purpose of soliciting or taking in passengers or persons other than those carried to the parks or parkways by such vehicle.

(Ord. No. 171, § 11(B), 9-14-77)

Cross references—Vehicles for hire, Ch. 21; taxicabs, § 21-26 et seq.

Sec. 12-79. Certain vehicles prohibited.

No person shall cause any bus, with or without passengers, nor any cart, wagon, truck or trailer or other vehicle carrying goods, merchandise, manure, soil or other articles, or solely in use for the carriage of goods, merchandise, manure or other articles to enter or to be driven in any part of the parks or parkways. This section shall not apply to vehicles engaged in the construction, maintenance or operation of the parks or parkways, nor to buses under a permit of the director.

(Ord. No. 171, § 11(C), 9-14-77)

Sec. 12-80. Obedience to laws generally.

It shall be the duty of every person operating an automobile, motorcycle or other vehicle of travel or burden within the parks or parkways to comply with the motor vehicle laws of the state and with all orders, directions and regulations issued by police officers or officially displayed on any post, standard, sign or device installed for the regulation of traffic.

(Ord. No. 171, § 11(D), 9-14-77)

Sec. 12-81. Speed limit.

No vehicle shall be operated on any road or drive in any park or parkway at a speed exceeding the absolute maximum of fifteen (15) miles per hour, except or unless otherwise posted.

(Ord. No. 171, § 11(E), 9-14-77)

Cross reference—Traffic and motor vehicles, Ch. 19.

Sec. 12-82. Traffic signs and markings.

(a) No vehicle shall pass another vehicle proceeding in the same direction if the center of the road is marked with a solid double line.

(b) Signs indicating one-way traffic must be obeyed.

(c) All stop signs and other traffic-control devices must be obeyed.

(Ord. No. 171, § 11(F)–(H), 9-14-77)

Cross reference—Traffic-control devices, § 19-46 et seq.

Sec. 12-83. Parking restrictions.

(a) No person shall park any vehicle or permit any vehicle to remain standing on any highway or roadway within the boundaries of a park or parkway in excess of the length of time and between the hours as hereinafter specified. No parking shall be allowed on any of the park roads between the hours of 9:30 p.m. and 6:00 a.m. No parking shall be allowed on the major roads, which will be designated by signs during the hours the parks are open.

(b) Parking areas in the parks are established for the convenience of patrons while using the facilities of the parks. It shall be unlawful for any person to park, stop or leave standing any vehicle in any parking area in any park, except during the time he remains in the park.

(c) The term “parking” shall mean the standing of any vehicle, whether occupied or not, upon any highway otherwise than temporarily or while actively engaged in loading or unloading or while standing in obedience to traffic regulations or traffic signals.

(Ord. No. 171, § 11(I), 9-14-77)

Cross reference—Stopping, standing and parking, § 19-86 et seq.

Sec. 12-84. Reckless operation of vehicles.

No person shall operate a vehicle along or over any road or drive within a park in a reckless manner or without due regard for the safety and the rights of pedestrians and drivers and occu-

pants of all other vehicles, so as to endanger the life, limb or property of any person while in the lawful use of such park drives or roads.

(Ord. No. 171, § 11(J), 9-14-77)

Cross reference—Operation of vehicles, § 19-66 et seq.

Sec. 12-85. Drag racing.

No person shall participate in a drag race upon any park drive or park property. "Drag racing" is defined as the operation of two (2) or more vehicles from a point side by side at accelerating speeds in a competitive attempt to outdistance each other, or the operation of one (1) or more vehicles over a common selected course from the same point to the same point wherein timing is made of the participating vehicles involving competitive accelerations or speeds. The operation of two (2) or more vehicles side by side, either at speeds in excess of permitted speeds on park drives or rapidly accelerating from a common starting point to a speed in excess of such permitted speeds, shall be prima facie evidence of drag racing.

(Ord. No. 171, § 11(K), 9-14-77)

Cross reference—Operation of vehicles, § 19-66 et seq.

Sec. 12-86. Operation of vehicles while under the influence.

No person who is under the influence of intoxicating liquor, narcotic drugs or opiates shall operate any vehicle within the park.

(Ord. No. 171, § 11(L), 9-14-77)

Cross reference—Operation of vehicles, § 19-66 et seq.

Sec. 12-87. Operation of unsafe vehicles.

No person shall drive or move or cause or knowingly permit to be driven or moved within the park, any vehicle or combination of vehicles which is in unsafe condition so as to endanger any person.

(Ord. No. 171, § 11(M), 9-14-77)

Sec. 12-88. Use of spotlights, headlights.

No person shall use or shine spotlights or unnecessarily or continuously shine automobile headlights onto park lands, except under direction of a police officer or park employee, or except where necessary for the preservation of life or property.

(Ord. No. 171, § 11(N), 9-14-77)

Sec. 12-89. Bicycles, snow vehicles and motorbikes.

(a) No person shall ride a bicycle upon the lawns, walks, foot trails or bridle trails of any parks or parkways unless otherwise posted.

(b) No motorized snow vehicles shall be permitted in any area of a park except where permitted by the director.

(c) No unlicensed motorbikes or other unlicensed vehicles shall be permitted in any area of a park.

(d) Riders of bicycles shall comply with the rules for the regulation of other vehicles and, in addition thereto, shall be subject to the following rules and regulations:

- (1) Riders shall proceed in the extreme right hand lane of the drive at all times, in single file only.
- (2) Riding crosswise and curving to and from are strictly prohibited.
- (3) No rider shall take both hands off the handles or steering mechanism or ride recklessly in any manner.
- (4) A bicycle shall not be towed by a rope or otherwise, nor shall any rider hold onto any moving vehicle for the purpose of being drawn along.
- (5) No bicycles shall be pushed upon any park or parkway drive where an adjoining footwalk is available.
- (6) Children under the age of twelve (12), riding small bicycles (wheel less than twenty (20) inches in diameter) may use the footwalks.
- (7) Wherever possible, bicycles shall be parked in places provided for such purpose.

(Ord. No. 171, § 10(J), 9-14-77)

Sec. 12-90. Track and field use and regulations.

(a) The following are prohibited from the fenced-in portion of the parks and recreation track and field facilities:

- (1) Dogs, cats and all other pets;

- (2) Motorized and non-motorized wheeled vehicles of any kind, including but not limited to wheeled recreation equipment such as motorcycles, OHRVs, including both ATVs and snowmobiles, skateboards, rollerblades, bicycles, scooters and the like;
 - (3) Food of any kind, including chewing gum;
 - (4) Smoking or use of any tobacco product, including chewing tobacco;
 - (5) Throwing events and related equipment, including but not limited to javelins, shot-put, hammer, and discus;
 - (6) Metal spikes or cleats;
 - (7) Glass bottles or containers;
- (b) The following are prohibited from any part of the track and field facilities:
- (1) Alcoholic beverages;
 - (2) Spitting, littering or not using designated trash receptacles, if any;
 - (3) Golf activities or equipment;
 - (4) Use of abusive, profane or indecent language;
- (c) No person shall be permitted on the track and field facility at any time other than set forth in section 12-66 without a special permit.
- (d) Any use of the facility for games or events is subject to obtaining a written permit from the director, as set forth in section 12-46.
- (e) Violators of these regulations will be asked to leave the facility, may be prohibited from further use of all parks and recreation facilities and will be subject to prosecution pursuant to section 12-31 and applicable provisions of state law.
(Ord. No. 475, § 2, 6-14-06)

DIVISION 4. TOBACCO PRODUCTS AND EQUIPMENT

Sec. 12-91. Findings and purpose.

The City of Claremont finds that, based on determinations and studies by various government agencies, the use of tobacco products is a significant public health hazard. The purpose of this division is to protect the health and well-being of all members of the public who have occasion to attend activities at city recreational parks and facilities, by restricting the use and disposal of tobacco products as outlined herein.
(Ord. No. 539, § 1, 9-10-2014)

Sec. 12-92. Use of tobacco products and equipment prohibited.

(a) Except in designated areas in each of the following city recreational parks and facilities, the use and disposal of all tobacco products and equipment is prohibited, as fully described below.

Barnes Park. Entire park area including but not limited to playing fields, dugouts, grandstand, concession stand, bleachers and viewing areas, basketball courts, playground, ice rink and warming hut, portable toilets, parking areas and any other areas not expressly named, including the pedestrian access area between the park and Garden Street.

Moody Park. The area three hundred fifty (350) feet more or less, southerly along Moody Park Road to the first bend from its intersection with Maple Avenue and both sides of the road to the property line of the park, including the tennis courts, playground, picnic area, parking lot and areas in between such facilities;

Monadnock Park. Entire park including but not limited to all athletic playing fields, dugouts, bleachers and benches, viewing areas, playground, tennis courts and fence area, bathrooms, storage and press box, equipment storage buildings, track and infield, parking areas and any other area not expressly named;

Veterans Park. Entire park area including but not limited to all athletic playing fields, bleachers, fence area, batting cages,

dugouts, portable toilets, horseshoe pits, picnic area and tables, playground, parking areas and any other area not expressly named.

(b) *Designated areas.* Use and disposal of tobacco products shall be permitted in the above-listed city parks in such designated areas as determined by the director of the parks and recreation department, as outlined below.

- (1) Such area be not less than five (5) feet on any side;
- (2) Such area is not located within five (5) feet of any entrance or exit, or walkway to such entrance or exit, of any building or other area open to the public at the recreational park or facility where smoking or use of tobacco products is otherwise prohibited;
- (3) Such area is posted with one (1) or more conspicuously displayed sign(s) that identify the area as a designated area for tobacco use, as well as the hours of permitted use;
- (4) The director of parks and recreation, in consultation with the city manager, may require, in their sole discretion, that any such area be modified or removed if it creates a nuisance or public health hazard.

(c) The use and disposal of all tobacco products and equipment is prohibited in the following city recreational parks and facilities, as fully described below, during any event or activity sanctioned and/or permitted by the city.

Broad Street Park. Entire park area including bandstand and abutting sidewalks;

Moody Park. In addition to the portion of the park described above, the entire length of Moody Park Road and all recreational trails, as well as all facilities, including but not limited to the tennis courts, playground, picnic area, parking lot, portable toilets and areas in between such facilities;

Sarah B.H. Smith Recreation Area/Riverside Park. Entire park and recreational area, including but not limited to skate

park equipment and surrounding areas, the pavilion, picnic area and tables, benches, portable toilets and any other area not expressly named.

(Ord. No. 539, § 1, 9-10-2014)

Sec. 12-93. Definitions.

[The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Smoking or use of tobacco products or equipment shall mean using tobacco products or equipment to produce the effect of smoking or for the intended purpose of the particular tobacco product or equipment.

Tobacco equipment means any product or device that is intended to deliver or facilitate delivery of tobacco products for use by one (1) or more persons. Such equipment includes but is not limited to bowls, pipes, chimneys, e-cigarettes, rolling paper or other assistive devices.

Tobacco products means any product made fully or in part of tobacco or natural or synthetic material intended to simulate tobacco, the intended use of which is smoking, chewing or inhaling. Such products include, but are not limited to, cigarettes, cigars, pipe tobacco, snuff, chewing tobacco, smokeless tobacco or any other tobacco product or product that simulates tobacco. (Ord. No. 539, § 1, 9-10-2014)

Sec. 12-94. Distribution and sales prohibited.

No person, firm, association, corporation or other legal entity selling or otherwise distributing tobacco products or equipment shall distribute, direct, authorize or permit any agent or employee to distribute any tobacco product or equipment, coupons or other related material to any person in any city park or recreational area or facility.

(Ord. No. 539, § 1, 9-10-2014)

Sec. 12-95. Signs required.

Signs shall be prominently placed and maintained at all applicable city parks and recreational areas and facilities, notifying the public of the prohibition against the use of tobacco products and equipment. Such signs shall state:

"The use and disposal of tobacco products and equipment in this Park or Recreational Area is strictly prohibited."
(Ord. No. 539, § 1, 9-10-2014)

Sec. 12-96. Penalties.

Any person who is found to have violated the provision of this division shall be subject to a civil penalty in the amount of fifty dollars (\$50.00) for the first offense, one hundred dollars (\$100.00) for the second offense, and two hundred dollars (\$200.00) for the third offense. Additionally, violators may be removed from the park or recreational area or facility. In addition to these penalties, persons under the age of eighteen (18) shall be subject to the provisions of RSA 126-K.
(Ord. No. 539, § 1, 9-10-2014)

Secs. 12-97—12-100. Reserved.